

UNITED STATES BANKRUPTCY COURT
SOUTHERN DISTRICT OF FLORIDA
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**GUIDELINES ON ELECTRONIC AVAILABILITY OF TRANSCRIPTS AND
PROCEDURES FOR TRANSCRIPT REDACTION**

All filed transcripts must comply with privacy requirements and be redacted in accordance with the following guidelines, which are adopted from the Judicial Conference of the United States national policy addressing electronic availability of transcripts of court proceedings. The Judicial Conference Policy on Electronic Availability of Transcripts applies to any transcript of a court proceeding that is subsequently filed with the court and made available to the public via electronic access.

Redaction responsibilities rest with the attorneys and pro se parties who attended the hearing. Parties are advised to refrain from eliciting any testimony that includes personal identifiers.

1. Transcripts of court proceedings may **only** be filed with the clerk's office by an approved court reporter. Transcripts are filed electronically and are initially restricted from public view to comply with privacy requirements. No party may file its own version of an unofficial or restricted transcript as an exhibit or attachment to any other document. If needed, incorporate by reference the docket entry number of an official filed transcript. For 90 days from the filing of the transcript, PACER access is not permitted except as provided under paragraph 2 below. However, the transcript will be available for viewing free of charge at the clerk's office public terminals. During this 90-day period, copying is not permitted.

2. During the initial 90-day restriction period, a transcript may be obtained from the court reporter at the rate established by the Judicial Conference of the United States. An attorney with a PACER electronic filing credential who purchases the transcript from the court reporter will also be given remote electronic access to the transcript via CM/ECF. The 30-page PACER fee cap is inapplicable, as access to all pages incur a fee. After the 90-day restriction period expires, the document becomes publicly available in the same manner as other public documents.

3. The docket text of the transcript filed by a court reporter provides all deadlines related to redaction and public availability.

4. As applicable, parties must timely file a "Statement of Personal Data Identifier Redaction Request" ("Statement") and indicate by page and line number the location of each personal data identifier for which redaction is requested. For purposes of this procedure, personal data identifiers include individual social security numbers, individual taxpayer identification numbers, financial account numbers, names of minor children, and dates of birth. The "Statement" is a publicly available document,

so filers must phrase content in a manner that does not disclose protected data. The “Statement” must also be served on the court reporter.

Only personal identifiers referenced in this paragraph will be redacted. Parties seeking to redact any publicly available document, including transcripts beyond a 90-day redaction period, must file a motion in accordance with Local Rule 9037-1 and include service upon the court reporter. The court will consider a motion to redact, without a hearing, pursuant to Local Rule 9013-2(c).

5. The court reporter will redact personal identifiers identified in the “Statement” as follows:

- for Social Security numbers and taxpayer-identification numbers, use only the last four digits;
- for financial account numbers, use only the last four digits;
- for names of minor children, use only their initials; and
- for dates of birth, use only the year.

The court reporter will file a redacted transcript and amended certification that indicates the transcript was amended. Parties who have previously ordered the unredacted transcript will be given PACER remote access to the redacted transcript.

6. After the 90-day restriction period has expired (unless there are pending related redaction motions), the filed transcript (or, if a redacted transcript was filed, the redacted transcript) will be publicly available. If a redacted transcript has been filed, the unredacted version will only be available for public viewing at the clerk’s office terminals, and copying is not permitted.

7. The policy set forth in these Guidelines:

- Does not affect the obligation of the court reporter to file promptly with the clerk’s office the court reporter’s original records of a proceeding or the inclusion of a filed transcript with the records of the court pursuant to 28 U.S.C. §753.
- Is not intended to create a private right of action.
- Is intended to apply the Judicial Conference policy on privacy and public access to electronic case files to transcripts that are electronically available to the public. It is not intended to change any rules or policies with respect to sealing or redaction of court records for any other purpose.
- Does not prevent the production of a transcript on an expedited basis for a party, or any other person or entity, that may order such a transcript, subject to whatever court rules or orders are currently imposed to protect sealed materials. Any non-party that orders a transcript on an expedited basis should be alerted to the Judicial Conference policy on privacy and public access to electronic case files by the entity providing the transcript to the party.